WA No. 25 of 2026
C/W WA No. 20 of 2026
WA No. 29 of 2026
AND 2 OTHERS

R

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 15TH DAY OF OCTOBER 2026

PRESENT

THE HON'BLE MR. JUSTICE D K SINGH

AND

THE HON'BLE MR. JUSTICE H.SHANTHI BHUSHAN

WRIT APPEAL NO. 25 OF 2026 (L-RES)
C/W
WRIT APPEAL NO. 20 OF 2026 (L-RES)
WRIT APPEAL NO. 29 OF 2026 (L-RES)
WRIT APPEAL NO. 30 OF 2026 (L-RES)
WRIT APPEAL NO. 56 OF 2026 (L-RES)

IN WA No. 25/2026:

BETWEEN:

MRS. SHUBHA M
AGE ABOUT 48 YEARS,
D/O MUKUNDA, NO.59, AECS LAYOUT, 16TH CROSS,
4TH MAIN ROAD, GEDDALHALLI,
BANGALORE-560 094.

...APPELLANT

(BY SRI. S.B.MUKKANNAPPA, ADVOCATE)

Digitally signed by MALA K N
Location: HIGH COURT OF KARNATAKA

AND:

1. MANAGEMENT OF
M/S SURETEX PROPHYLACTICS (INDIA)
LIMITED & ANOTHER,
PLOT NO.74 KIADB INDUSTRIAL ESTATE,
JIGANI 2ND PHASE, ANEKAL TALUK,
BENGALURU -560 105.
REPRESENTED BY ITS
SENIOR MANAGER HR

2. THE SECRETARY
DEPARTMENT OF LABOUR
VIKASA SOUDHA, DR AMBEDKAR VEEDHI,
BENGALURU-560 001. .. RESPONDENTS

(BY SMT. ROOPA SRI.S.,ADVOCATE FOR R1;
SRI. B.RAVINDRANATH, AGA FOR R2)

THIS WRIT APPEAL FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER DATED 03/12/2025 PASSED BY THE LEARNED SINGLE JUDGE IN WP NO.7675/2022 AND CONSEQUENTLY DISMISS THE WRIT PETITION FILED BY THE 1ST RESPONDENT.

IN WA NO. 20/2026:

BETWEEN:

SRI. NAGARAJU
AGED ABOUT 49 YEARS,
S/O SIDDEGOWDA,
NO.285, MARUTHI NAGAR,
SONNENAHALLI, ULLALA UPANAGAR POST,
BANGALORE-560 056.

...APPELLANT

(BY SRI. S.B.MUKKANNAPPA.,ADVOCATE)

AND:

1. MANAGEMENT OF
M/S SURETEX PROPHYLACTICS
INDIA PVT.LTD. AND ANR
PLOT NO.74,KIADB INDUSTRIAL ESTATE,
JIGANI 2ND PHASE, ANEKAL TALUK,
BANGALORE-560 105,
REPRESENTED BY ITS SENIOR MANAGER-HR

2. THE SECRETARY,
DEPARTMENT OF LABOUR,
VIKASA SOUDHA, DR.AMBEDKAR VEEDHI,
BANGALORE-560 001.

...RESPONDENTS

(BY SMT. ROOPA SRI.S., ADVOCATE FOR R1;
SRI. B.RAVINDRANATH, AGA FOR R2)

THIS WRIT APPEAL FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER DATED 03/12/2025 PASSED BY THE LEARNED SINGLE JUDGE IN WP NO.7893/2022 AND CONSEQUENTLY DISMISS THE WRIT PETITION FILED BY THE 1ST RESPONDENT.

IN WA NO. 29/2026:

BETWEEN:

1. SRI. BHIMAPPA,
AGED ABOUT 51 YEARS,
S/O. LATE SRI.MARIYAPPA,
RESIDING AT. NO.264, GULBARGA COLONY,
1ST BLOCK, JAYANAGAR,
BANGALORE – 560 011.

2. SRI. V.CHANDRASHEKAR,
AGED ABOUT 49 YEARS,
S/O. LATE. L.VENKATARAMAIAH,
RESIDING AT NO.17, NEW NO.97,
8TH MAIN, 13TH CROSS, MALLESHWARAM,
BANGALORE - 560 003.

3. SRI. NAGARAJAPPA
AGED ABOUT 50 YEARS,
S/O. NILAGIRIYAPPA,
RESIDING AT SRIRAMAGONDANAHALLI,
DAVANGERE DISTRICT. -577 005.

4. SRI.SHIVAMADEGOWDA,
AGED ABOUT 50 YEARS,
S/O HONNEGOWDA,
RESIDING AT NO. MUTHUNILAYA,
2ND CROSS, NEAR SHANTHI COLLEGE,
MYSORE MAIN ROAD, MALAVALLI,
MANDYA DISTRICT 571 430.

5. SRI. RAMESH. K.S.
S/O. LATE. SIDDAIAH,
AGED ABOUT 50 YEARS,
C/O SRI VENUGOPALAREDDY,
RESIDING AT NO.40, KEMPANAYAKANA HALLI,
BANNERGHATTA,BANGALORE 560 083.

6. SMT. SEETHALAKSHMI,
AGED ABOUT 51 YEARS,
W/O SRI. RAVIKUMAR P PATIL,
RESIDING AT NO.237, SRINANDHI,
1ST MAIN, SRI DWARAKA NAGARA,
CHIKKABANAWARA POST,

HESARAGHATTA MAIN ROAD,
BANGALORE 560 090.

...APPELLANTS

(BY SRI. S.B.MUKKANNAPPA.,ADVOCATE)

AND:

1. MANAGEMENT OF
M/S SURETEX PROPHYLACTICS INDIA PVT.LTD.
PLOT NO.74, KIADB INDUSTRIAL ESTATE,
JIGANI 2ND PHASE, ANEKAL TALUK,
BANGALORE-560 105,
REPRESENTED BY ITS
SENIOR MANAGER-HR

2. THE ASSISTANT LABOUR COMMISSIONER
DIVISION IV, LABOUR DEPARTMENT,
BANNERGHATTA ROAD,
BANGALORE - 560 029,

...RESPONDENTS

(BY SMT. ROOPA SRI.S.,ADVOCATE FOR R1;
SRI. B.RAVINDRANATH, AGA FOR R2)

THIS WRIT APPEAL FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER DATED 03.12.2025 PASSED BY THE LEARNED SINGLE JUDGE IN WRIT PETITION No. 2459/2023 AND CONSEQUENTLY DISMISS THE WRIT PETITION FILED BY THE 1ST RESPONDENT WITH A FURTHER DIRECTION TO THE 2ND RESPONDENT TO HOLD THE CONCILIATION PROCEEDINGS IN ACCORDANCE WITH SECTION 12 OF THE INDUSTRIAL DISPUTES ACT, 1947, TO MEET THE ENDS OF JUSTICE.

IN WA NO. 30/2026:

BETWEEN:

SRI. R. LOKESH
AGED ABOUT 47 YEARS,
S/O RAMAKRISHNASHETTY,
RESIDING AT NO.61, 7TH CROSS,
MALLESHWARAM, BENGALURU 560 003.

...APPELLANT

(BY SRI. S.B.MUKKANNAPPA.,ADVOCATE)

AND:

1. MANAGEMENT OF
M/S SURETEX PROPHYLACTICS INDIA
PVT.LTD. AND ANR
PLOT NO.74, KIADB INDUSTRIAL ESTATE,
JIGANI 2ND PHASE, ANEKAL TALUK,
BANGALORE-560 105,
REPRESENTED BY ITS
SENIOR MANAGER-HR

2. THE SECRETARY,
DEPARTMENT OF LABOUR,
VIKASA SOUDHA,
DR.AMBEDKAR VEEDHI,
BANGALORE-560 001. …RESPONDENTS

(BY SMT. ROOPA SRI.S.,ADVOCATE FOR R1;
SRI. B.RAVINDRANATH, AGA FOR R2)

THIS WRIT APPEAL FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER DATED 03.12.2025 PASSED BY THE LEARNED SINGLE JUDGE IN WRIT PETITION No. 7803/2022 AND CONSEQUENTLY DISMISS THE WRIT PETITION FILED BY THE 1ST RESPONDENT, TO MEET THE ENDS OF JUSTICE.

IN WA NO. 56/2026:

BETWEEN:

SRI. RAMAKRISHNAIAH
S/O LATE VEERABHADRAIAH,
AGED ABOUT 47 YEARS
R/A DODDABOOLI, MANCHANABELE POST,
MAGADI TALUK,
RAMANAGARA DISTRICT-562 159.

...APPELLANT

(BY SRI. S.B. MUKKANNAPPA.,ADVOCATE)

AND:

1. MANAGEMENT OF
M/S SURETEX PROPHYLACTICS (INDIA)
PVT LTD & ANR.
PLOT NO.74, KIADB INDUSTRIAL ESTATE,
JIGANI 2ND PHASE, ANEKAL TALUK,
BENGALURU-560 105.
REPRESENTED BY ITS SENIOR MANAGER – HR

2. THE SECRETARY
DEPARTMENT OF LABOUR,
VIKAS SOUDHA, DR AMBEDKAR VEEDHI,
BENGALURU-560 001.

...RESPONDENTS

(BY SMT. ROOPA SRI.S.,ADVOCATE FOR R1;
SRI. B.RAVINDRANATH, AGA FOR R2)

THIS WRIT APPEAL FILED U/S 4 OF THE KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER DATED 03.12.2025 PASSED BY THE LEARNED SINGLE JUDGE IN WRIT PETITION No. 18958/2021 AND CONSEQUENTLY DISMISS THE WRIT PETITION FILED BY THE 1ST RESPONDENT, TO MEET THE ENDS OF JUSTICE.

THESE APPEALS HAVING BEEN HEARD AND RESERVED FOR JUDGMENT ON 07.09.2026 AND COMING ON FOR PRONOUNCEMENT THIS DAY, ***HON'BLE MR. JUSTICE H.SHANTHI BHUSHAN*** DELIVERED THE FOLLOWING:

CORAM: HON'BLE MR. JUSTICE D K SINGH
AND
HON'BLE MR. JUSTICE H.SHANTHI BHUSHAN

CAV JUDGMENT

(PER: HON'BLE MR. JUSTICE H.SHANTHI BHUSHAN)

A "golden handshake", as a voluntary retirement scheme is commonly described, is intended to bring the employer–employee relationship to an end on the terms mutually accepted by the parties. Having opted for voluntary retirement, acknowledged the terms of the scheme in writing and received the benefits thereunder, the petitioner's subsequent challenge must be examined in the light of her earlier conduct and the material available on record. Such an arrangement cannot ordinarily be repudiated merely by a subsequent assertion of coercion, in the absence of sufficient material substantiating the allegation. The acceptance of retirement benefits and the unexplained delay in raising the dispute are relevant circumstances in determining whether the concluded employment arrangement warrants reconsideration.

All these intra-court appeals have been preferred by the petitioner/Management of M/s.Suretex Prophylactics (India) Limited, against the order dated 03.12.2025, passed by the

learned Single Judge of this Court in W.P.No.7675/2022 (L-RES), W.P.No.7893/2022 (L-RES), W.P.No.2459/2023 (L-RES), W.P.No.7803/2022 (L-RES) and W.P.No.18958/2021 (L-RES), wherein the learned Single Judge of this Court had allowed the Writ Petitions by quashing the notice/reference impugned therein.

2. These connected writ appeals though arising out of the separate orders passed by the learned Single Judge, but emanate from substantially similar facts and circumstances and involve common questions of law and fact, we have, therefore, considered the matters together and dispose of them by this common order. W.A.No.25 of 2026 is treated as the lead appeal for the purpose of reference and disposal.

3. For the sake of convenience and to avoid confusion, the parties are referred to by their respective rankings before the writ court.

Facts of the Writ petitioner:

4. The writ petitioner, Management of M/s. Suretex Prophylactics (India) Limited, is engaged in the manufacture of rubber contraceptives at its factory situated at Plot No.74,

KIADB Industrial Estate, Jigani, Second Phase, Anekal Taluk, Bengaluru. Respondent No.1, Smt.Shubha M., joined the services of the petitioner-company as a Trainee on 11.09.1999. According to the petitioner, with a view to reducing surplus manpower, the management introduced a Voluntary Retirement Scheme in October 2009 after holding discussions with the permanent workmen. Under the scheme, a sum of Rs.1,56,160/- was payable towards voluntary retirement, apart from the other admissible dues and incentives.

5. The petitioner contended that 86 workmen submitted applications under the scheme between 05.10.2009 and 10.10.2009. The applications were accepted by the management, and the workmen were relieved from service after their accounts were settled. The payments included the voluntary retirement amount, gratuity, early-bird incentive, seniority incentive, leave encashment and bonus, as applicable. In the case of respondent No.1, the petitioner asserted that she received a total sum of Rs.3,31,528/-, comprising Rs.1,56,160/- towards voluntary retirement and Rs.1,75,368/- towards other benefits. The amounts were paid through individual account-payee cheques. Following the acceptance of

voluntary retirement and settlement of accounts, the management and the concerned workmen entered into settlements under Section 18(1) of the Industrial Disputes Act, 1947 (**'the ID Act'**).

6. The petitioner further pleaded that respondent No.1 had submitted her application for voluntary retirement on 10.10.2009 and was relieved after the settlement of her dues. However, by a petition dated 12.07.2017, registered as PTN/CR/84/2017-18, she approached the Labour and Conciliation Officer, Division VI, Bengaluru, alleging that her resignation had been obtained by force and that her cessation from service was, in substance, a termination of employment. According to the petitioner, respondent No.1 had accepted the entire settlement and encashed the cheque before raising the dispute, and no satisfactory explanation had been furnished for the intervening delay of nearly eight years.

7. The management appeared before the conciliation officer and filed its objections, specifically relying upon the voluntary retirement application, the settlement executed under Section 18(1) of the ID Act and the payment of the entire amount due under the scheme. It maintained that the

dispute was stale and that the allegation of forced resignation had been raised only after respondent No.1 had accepted the benefits of voluntary retirement.

8. Upon failure of conciliation, the Government, by order bearing No.LD-IDM/197/2021/LD.DO.6.L.S dated 19.04.2021, referred the dispute for adjudication. The reference was registered as Reference No.30/2021 before the I Additional District and Sessions Judge, Bengaluru Rural, Bengaluru. Aggrieved by the reference, the management instituted Writ Petition No.7675/2022 under Article 226 of the Constitution of India, seeking a writ of certiorari to quash the order dated 19.04.2021.

Defence of the respondents:

9. Respondent No.1 opposed the writ petition, contending that the voluntary retirement was not the result of a free and voluntary decision on her part. Her specific case was that the management had insisted upon her accepting the scheme and had obtained the retirement application by coercion, thereafter relieving her from service and transferring the compensation amount without her genuine consent. She

relied upon the terms of the Voluntary Retirement Scheme, the dates appearing on the applications and the documents produced by the management to dispute the contention that the retirement was voluntary.

10. It was contended that the scheme was stated to remain in force from 05.10.2009 to 09.10.2009, whereas certain applications, including the application relied upon in her case, bore dates falling outside that period. Respondent No.1also questioned the manner in which the applications had been processed and contended that Clause VII of the scheme had not been given effect to. According to her, these circumstances required examination in the industrial adjudication proceedings and could not be brushed aside merely because monetary benefits had been paid.

11. The respondents further submitted that the dispute had arisen out of an allegation of forced resignation, which, if established, would amount to an involuntary termination of service. They contended that the management's denial of coercion and the workwoman's allegation to the contrary disclosed a disputed question of fact requiring adjudication on evidence. It was argued that the ID Act did not prescribe a

specific period of limitation for raising such a dispute and that the mere lapse of time could not, by itself, justify quashing the reference at the threshold. The learned Additional Government Advocate supported the action of the Government in referring the dispute for adjudication and sought dismissal of the writ petition.

Consideration of the writ court:

12. The writ court, by order dated 03.12.2025 in Writ Petition No.7675/2022, considered the rival submissions and the records placed before it. The principal question addressed was whether the Government was justified in referring the dispute for adjudication despite the considerable lapse of time between the alleged forced resignation and the raising of the industrial dispute, considering that the relevant payments pursuant to voluntary retirement had already been made.

13. The writ court noticed that respondent No.1 had joined the petitioner-company on 11.09.1999 and that the management had introduced the voluntary retirement scheme in 2009. It took note of the petitioner's case that the workwoman had received Rs.3,31,528/- towards the voluntary

retirement package and other admissible benefits, that her accounts had been settled and that a settlement had been executed under Section 18(1) of the ID Act. It also noticed that the allegation of forced resignation had been raised before the conciliation officer only after a lapse of nearly eight years.

14. The writ court observed that voluntary retirement ordinarily brings the employer–employee relationship to an end upon acceptance of the scheme and the associated benefits. It invoked the principle of approbate and reprobate, holding that a person who accepts the benefits flowing from a transaction cannot ordinarily turn around at a later stage and challenge the very transaction or assert a position inconsistent with the acceptance of those benefits.

15. On the question of delay, the writ court relied upon the principle that, although the ID Act does not prescribe a fixed period of limitation for making a reference under Section 10, the appropriate Government must nevertheless consider whether a live and existing industrial dispute survives. In its view, a claim raised after a long and unexplained interval, particularly after acceptance of a full and final settlement under a voluntary retirement scheme, cannot be treated as an

existing industrial dispute warranting reference. The court also considered the need to avoid unsettling an employer's financial arrangements and disturbing industrial peace by entertaining stale claims without satisfactory explanation for the delay.

16. The writ court rejected the contention that the proceedings were premature merely because the Government had already made a reference and the question of delay could be examined by the adjudicating forum. It held that the administrative authority was required, at the stage of making the reference, to examine whether a bona fide industrial dispute continued to exist or whether the claim had become stale with the passage of time. The court concluded that the Government had failed to have regard to the relevant considerations before making the reference and that the reference, in the circumstances of the case, was unsustainable.

17. Accordingly, by its order dated 03.12.2025, the writ court allowed the writ petition, issued a writ of certiorari and quashed the order of reference dated 19.04.2021 bearing No. LD-IDM/197/2021/LD.DO.6.L.S.

Writ appeal by respondent No. 1:

18. Aggrieved by the order dated 03.12.2025 passed in Writ Petition No.7675/2022, respondent No.1 has preferred Writ Appeal No.25.2026 seeking to set aside the order of the writ court and consequently dismiss the writ petition instituted by the petitioner.

19. Respondent No.1 contends that the writ court failed to properly appreciate the factual circumstances surrounding the introduction and implementation of the voluntary retirement scheme and erroneously proceeded on the footing that receipt of monetary benefits necessarily established voluntary retirement. She asserts that her specific allegation was that the application had been obtained by coercion and that the circumstances attending the submission and acceptance of the application required examination in the industrial adjudication proceedings.

20. It is urged that the writ court failed to give due consideration to the objections and materials relied upon by respondent No.1, particularly the dates of the voluntary retirement applications, the period during which the scheme

was stated to remain in force and the alleged non-compliance with Clause VII of the scheme. According to respondent No.1, these matters could not have been conclusively determined against her merely on the basis of the payment of the retirement benefits.

21. Respondent No.1 further contends that the Government's power under Section 10 of the ID Act is exercisable where an industrial dispute exists or is apprehended and that the absence of a prescribed limitation period does not permit the High Court to interfere with a reference solely on the ground of delay, without due consideration of the nature of the dispute and the circumstances in which it was raised. It is her case that the allegation of coercion, having been disputed by the management, ought to have been examined by the competent adjudicating forum on the basis of the evidence adduced by the parties.

22. Respondent No.1 also relies upon the following decisions:

(i) ***Avon Services Production Agencies (P) Ltd. v. Industrial Tribunal, Haryana[1],***

[1](1979) 1 SCC 1.

(ii) Telco Convoy Drivers Mazdoor Sangh v. State of Bihar[2],

(iii) S.M. Nilajkar v. Telecom District Manager, Karnataka[3],

(iv) Raghubir Singh v. General Manager, Haryana Roadways[4],

(v) Prabhakar v. Joint Director, Sericulture Department[5],

(vi) M/s. Bata India Limited v. State of Karnataka[6],

(vii) M/s. Bata India Limited v. State of Karnataka.[7]

She contends that the principles emerging from the said decisions were not properly applied by the writ court to the facts of the present case.

23. A further ground urged in the appeal is that the order of reference itself had identified the delay as a matter requiring consideration in the industrial dispute. According to respondent No.1, once the dispute had been referred for adjudication, the parties ought to have been afforded an opportunity to place their respective evidence on record, including evidence concerning the alleged coercion and the circumstances surrounding the voluntary retirement.

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[2](1989) 3 SCC 271.
[3](2003) 4 SCC 27.
[4](2014) 10 SCC 301.
[5](2015) 15 SCC 1.
[6]W.P. No.47002/2015, disposed of on 22.02.2021
[7]W.A. No.504/2021, disposed of on 29.07.2021

Respondent No.1 therefore maintains that the writ court erred in quashing the reference at the threshold instead of permitting the dispute to be adjudicated in accordance with law.

24. On these grounds, respondent No.1 seeks setting aside of the order dated 03.12.2025 and dismissal of Writ Petition No.7675/2022, thereby restoring the reference for adjudication.

25. We have carefully considered the submissions advanced on behalf of respondent No.1, the grounds urged in the memorandum of appeal, the records placed before us and the order dated 03.12.2025.

26. Having heard Sri S.B.Mukkannappa, learned counsel appearing for the appellant/respondent No.1, Smt.Roopasri. S, learned counsel appearing for respondent No.1, and Sri.B.Ravindranath, learned Additional Government Advocate appearing for respondent No.2, and having considered the decisions cited and the submissions advanced, the principal question that arises for our consideration is,

> *"Whether the appropriate Government was justified in making the reference dated 19.04.2021,*

notwithstanding respondent No.1's acceptance of voluntary retirement and receipt of the benefits payable under the scheme in October 2009, and the delay of nearly eight years in raising the dispute alleging forced retirement?"

We answer the above point in the *negative* for the reasons hereinbelow:

Reasons for dismissal of the writ appeal:

27. Respondent No.1 joined the services of the petitioner-management on 11.09.1999. Upon introduction of the Voluntary Retirement Scheme in October 2009, respondent No.1 submitted her application dated 08.10.2009, stating that she had gone through the scheme dated 05.10.2009, understood its implications and accepted its terms. She further requested the management to accept her application and settle her accounts, acknowledging that she had read and signed each page of the scheme as a token of her acceptance. The management's case is that the application was accepted, respondent No.1 was relieved from service and a sum of Rs.3,31,528/- was paid to her, comprising Rs.1,56,160/- towards voluntary retirement and Rs.1,75,368/- towards other benefits, including gratuity and incentives. The management

also contended that the settlement was concluded under Section 18(1) of the ID Act. The dispute alleging that respondent No.1 had been compelled to opt for voluntary retirement was raised only on 12.07.2017. The relevant portion of the aforementioned letter dated 08.10.2009 whereby respondent No.1 accepted voluntary retirement under the scheme is produced hereinbelow:

"08/10/2009

From,

Emp. Name: SHUBHA M.
Emp. Code:

To,
M/s. Suretex Prophylactics (I) Ltd.,
Plot No. 74 to 91, KIADB Industrial Estate,
Jigani II Phase, Anekal Taluk,
Bangalore – 560 105.

Dear Sirs,

I have gone through the Voluntary Retirement Scheme, dated 5th October 2009 announced by the company. I have also gone through the benefits that I would be entitled to in case of my opting to retire under the Scheme. After fully understanding the implications of retiring under the Voluntary Retirement Scheme, I hereby opt for retirement under the scheme. Kindly accept my application for retirement and settle my accounts.

I have also gone through a copy of the Voluntary Retirement Scheme furnished to me by the management, and after going through the Scheme, I have signed on each page of the Scheme in token of my acceptance of the terms of the Scheme. Along with this

application, I am forwarding the said copy for your records.

Thanking you,

Yours faithfully "

28. The question requires examination not merely of whether respondent No.1was a workman during the subsistence of her employment, but also of the legal consequences flowing from the cessation of the employer–employee relationship pursuant to the accepted voluntary retirement scheme. Section 2(s) of the ID Act defines a 'workman' and includes, for the purposes of proceedings under the Act, persons who have been dismissed, discharged or retrenched in connection with, or as a consequence of, an industrial dispute. Section 2(oo) of the ID Act defines 'retrenchment' and expressly excludes voluntary retirement of a workman. The cessation of employment pursuant to an accepted voluntary retirement scheme therefore raises a question as to whether respondent No.1 continued to fall within the definition of 'workman' at the time of reference.

29. However, even assuming that respondent No.1 continued to qualify as a 'workman', such status would not, by

itself, establish that a live industrial dispute continued to subsist after her retirement. The existence of an industrial dispute, or one which is apprehended, must be examined in the light of the facts and circumstances of the particular case.

30. At this juncture, we may place reliance on the judgment of the Supreme Court in ***A.K. Bindal v. Union of India***[8], wherein the court observed:

> *"34. This shows that a considerable amount is to be paid to an employee ex-gratia besides the terminal benefits in case he opts for voluntary retirement under the Scheme and his option is accepted. The amount is paid not for doing any work or rendering any service. It is paid in lieu of the employee himself leaving the services of the company or the industrial establishment and forgoing all his claims or rights in the same. It is a package deal of give and take. That is why in business world it is known as 'Golden Handshake'. The main purpose of paying this amount is to bring about a complete cessation of the jural relationship between the employer and the employee. After the amount is paid and the employee ceases to be under the employment of the company or the undertaking, he leaves with all his rights and there is no question of his again agitating for any kind of his past rights, with his erstwhile employer including making any claim with regard to enhancement of pay scale for an*

[8]AIR 2003 SC 2189.

> *earlier period. If the employee is still permitted to raise a grievance regarding enhancement of pay scale from a retrospective date, even after he has opted for Voluntary Retirement Scheme and has accepted the amount paid to him, the whole purpose of introducing the Scheme would be totally frustrated."*

31. The Supreme Court explained that a voluntary retirement scheme constitutes an arrangement intended to bring about the cessation of the legal relationship between the employer and employee upon fulfillment of the stipulated terms. The principle underlying such a scheme cannot be defeated by permitting an employee to accept the benefits thereunder and subsequently reopen the concluded arrangement without sufficient grounds.

32. The Supreme Court in ***Gyanendra Sahay v. M/s. Tata Iron & Steel Co. Ltd.***[9] has observed as under:

> *"14. We have also perused the Memo of Appeal and other representation made by the 1st respondent. The 1st respondent has made a vague allegation that he was forced to take retirement. Neither he has made it specific nor had given the name of any officer who compelled him to write the letter dt.1st April, 1995 or exercised undue and excessive pressure to sign the letter of*

[9]AIR 2006 SC 2795.

premature/voluntary retirement. Though the Labour Court has come to the conclusion that the 1st respondent was compelled to submit the letter of resignation, the same is not supported by any acceptable evidence. It is settled law that suspicion and doubt cannot take the place of evidence. No finding of fact can be given on mere doubt and suspicion or on the basis of baseless allegations. The 1st respondent having written letter of voluntary retirement and after having accepted the retiral benefits without any protest cannot now turn round and say that he was compelled to submit his premature/voluntary retirement. The appeal has absolutely no merits and we, therefore, have no hesitation to dismiss the same and to affirm the order passed by the learned Judges of the Division Bench of the High Court. No order as to costs."

33. Further, the principle emerging from the above judgment requires the circumstances surrounding the employee's departure from service to be examined to determine whether the retirement was voluntary or whether the employer had, in substance, dispensed with the employee's services without authority. Thus, the allegation of coercion must be assessed on the basis of the material on record and cannot be accepted merely because it is subsequently asserted.

34. In the present case, respondent No.1's application acknowledging her understanding and acceptance of the voluntary retirement scheme, the payment and receipt of Rs.3,31,528/- towards retirement and other benefits, and the absence of any contemporaneous protest assume considerable significance. The allegation that respondent No.1 was compelled to opt for retirement cannot be accepted as established merely because it was subsequently raised. The material placed before us does not disclose specific particulars identifying the person who allegedly exerted pressure, the nature of the alleged coercion or any contemporaneous circumstance sufficient to *prima facie* substantiate the assertion that the application was not submitted of her free will. Equally, the mere submission of an application for voluntary retirement would not, by itself, foreclose an inquiry into a properly substantiated allegation of coercion. The relevant circumstances must be considered cumulatively.

35. The delay in raising the dispute is, in this context, a material consideration. Respondent No.1 accepted voluntary retirement in October 2009, whereas the allegation of forced retirement was raised only on 12.07.2017, after nearly eight

years. No satisfactory explanation for this prolonged interval is forthcoming from the material placed before us. The absence of a contemporaneous protest, when considered alongside the acceptance of the retirement benefits, assumes particular importance in determining whether the claim disclosed a subsisting industrial grievance warranting reference. Although the ID Act does not prescribe a fixed period of limitation for a reference under Section 10, the absence of a prescribed limitation period does not relieve the appropriate Government of its obligation to consider whether a live industrial dispute exists or is apprehended. The power of reference cannot be exercised mechanically merely because a claim has been raised, irrespective of the circumstances in which it is made or the unexplained delay in pursuing it.

36. The contention that all questions relating to delay and coercion ought to have been left entirely to the industrial adjudicating forum cannot be accepted in the facts of the present case. While the appropriate Government is not expected to conduct a full-fledged adjudication of disputed questions of fact, it is nevertheless required to apply its mind to the relevant material and determine whether the proposed

reference concerns an existing or apprehended industrial dispute. The Government was, therefore, required to consider the terms of respondent No.1's retirement application, the acceptance of the scheme, the receipt of the benefits, the absence of contemporaneous protest and the unexplained delay in raising the dispute. Respondent No.1's reliance on alleged irregularities in the implementation of the scheme, including discrepancies in the dates appearing on certain applications and alleged non-compliance with Clause VII, does not alter this conclusion, in the absence of sufficient material demonstrating how those alleged irregularities established coercion in her individual case or explained the delay in raising the grievance.

37. The writ court, by its order dated 03.12.2025, examined the relevant circumstances and concluded that the appropriate Government had failed to address the staleness of the claim and the essential question as to whether a live industrial dispute existed or was apprehended before making the reference dated 19.04.2021. We find no perversity or error in the writ court's conclusion warranting interference in the present appeal. Respondent No.1 has failed to demonstrate any sufficient ground for restoring the reference or for holding that

the writ court exceeded the permissible limits of judicial review. In the circumstances, permitting the reference to proceed would have the effect of reopening a concluded employment arrangement after an unexplained lapse of nearly eight years, notwithstanding the acceptance of the retirement benefits and the absence of adequate material supporting the allegation of coercion.

38. It is a settled principle of law that a litigant who approaches the Court must do so with clean hands and make full disclosure of all material facts. This principle applies not only to proceedings under Articles 226 of the Constitution of India, but also to proceedings before other Courts and judicial forums. Every Court is duty-bound to protect its process from abuse by litigants who seek to secure relief by suppressing material particulars, making misleading statements or withholding facts having a bearing on the adjudication. The judicial process cannot be permitted to become an instrument for reopening concluded transactions through belated and unsubstantiated assertions. The equitable jurisdiction of the Court cannot be invoked by a party who seeks to approbate and reprobate, thereby gaining an advantage contrary to the

position previously accepted by such party. The sanctity of judicial proceedings demands fairness and candour and no litigant can claim equitable relief as a matter of right while abusing the very process through which such relief is sought**.**

39. In view of the decisions discussed hereinabove, the decisions relied upon by the petitioner do not advance her case or assist in sustaining the grounds urged in the present appeal.

40. For the foregoing reasons, we find no merit in the writ appeal.

41. The grounds urged by respondent No.1 do not disclose any error warranting interference with the order dated 03.12.2025 passed by the writ court in W.P. No.7675/2022.

Accordingly, Writ Appeal No.25/2026 is ***dismissed***.

In view of the dismissal of W.A.No.25/2026 and for the reasons stated herein, we find no ground warranting a different conclusion in the connected appeals. Accordingly, all other connected appeals are also ***dismissed.***

The impugned orders dated 03.12.2025, passed by the learned Single Judge of this Court in W.P.No.7675/2022 (L-

RES), W.P.No.7893/2022 (L-RES), W.P.No.2459/2023 (L-RES), W.P.No.7803/2022 (L-RES) and W.P.No.18958/2021 (L-RES) are hereby confirmed.

While we are inclined to impose exemplary costs on respondent No.1, having regard to the circumstances of the case, we are mindful of the fact that respondent No.1 had opted for voluntary retirement. We, therefore, refrain from imposing exemplary costs and direct the parties to bear their own costs.

Sd/-
(D K SINGH)
JUDGE

Sd/-
(H.SHANTHI BHUSHAN)
JUDGE

KNM